

At the plenary session on January 17, 2023, the European Data Protection Board adopted a report on the findings of its second coordinated enforcement action, which focused on the appointment and position of data protection officers. The report is the result of a coordinated investigation at the EU level and outlines the obstacles currently faced by data protection officers, as well as a series of recommendations for further strengthening their role.

Ana Talus, Chair of the European Data Protection Board, stated: “The Coordinated Enforcement Framework (CEF) enables data protection authorities to collaborate more closely on selected topics to achieve better efficiency and greater consistency. Data protection officers play an important role in contributing to compliance with data protection regulations and promoting effective protection of the rights of data subjects. Within the framework of the CEF, data protection authorities investigated whether data protection officers have the means to fulfill their tasks, as required by the General Data Protection Regulation. The report provides an analysis of the challenges faced by data protection officers, as well as key points and recommendations for addressing those challenges.”

During 2023, 25 data protection authorities across the European Economic Area (EEA) (including the EDPS) initiated coordinated investigations on the aforementioned topic. Throughout the EEA, they contacted various organizations and data protection officers covering a wide range of sectors (public and private entities), and received and analyzed over 17,000 responses. Comprehensive data was collected, providing valuable insights into the profile, position, and work of data protection officers five years after the implementation of the General Data Protection Regulation began.

Despite certain concerns and challenges faced by some data protection officers (such as the lack of appointment of data protection officers, even when mandatory; insufficient resources or expertise of data protection officers; data protection officers not being fully entrusted with tasks prescribed by the General Data Protection Regulation; lack of independence or reporting to senior management), the results are encouraging. The majority of surveyed data protection officers report that they have the necessary skills and knowledge for their job and regularly attend training; they have clearly defined tasks in accordance with the General Data Protection Regulation and do not receive instructions on how to perform their duties. Furthermore, they state that in most cases, consultations are conducted with them and they are provided with sufficient information to fulfill their tasks, and that their opinions are taken into account. Moreover, most believe they have the means to perform their job. However, there are still too many data protection officers who are not in such a position.

To address the identified challenges, the report outlines specific recommendations for organizations, data protection officers, and data protection authorities to strengthen the independence of data protection officers and ensure they have the necessary resources to carry out their tasks. Among other things, the report encourages data protection authorities to conduct more awareness-raising activities, information dissemination, and enforcement measures. The report also encourages organizations to ensure that data protection officers have sufficient time and resources to enhance their knowledge.

The report is accompanied by statistical data collected during this activity and national reports from each involved data protection authority.

The CEF is a key measure of the European Data Protection Board within its strategy for the period 2021 – 2023, aimed at streamlining enforcement and cooperation among data protection authorities. The activities of the CEF in 2024 will focus on the implementation of the right of access by data controllers.